

		In addition, “[w]hen security that has been ordered furnished is not furnished as ordered, the litigation shall be dismissed as to the defendant for whose benefit it was ordered furnished.” (Code Civ. Proc., § 391.4.) Here, Plaintiff was declared a vexatious litigant on October 22, 2025, in the related case, <i>Phan Tin Quoc v. Fountain Valley Regional Hospital</i>, Orange County Superior Court Case Number 30-2023-01337174. Plaintiff was also declared a vexatious litigant on October 27, 2025, in <i>Tin Quoc Phan v. County of Orange</i>, Orange County Superior Court Case Number 30-2025-01496640. Further, there is no reasonable probability that Plaintiff will prevail in this action. Plaintiff’s claims are barred by the one-year statute of limitations under Code of Civil Procedure section 340.5. In addition, Plaintiff cannot establish that Defendants Francoise Raiola, M.D. and Romana Bailey, M.D. owed him a duty of care or engaged in wrongful conduct causing him the injury alleged in the Complaint. Therefore, the court will grant the motion to furnish security.
3	Ydens Holdings, LLC vs. Mobix Labs, Inc. 30-2026-01555400	There is no full written tentative ruling at this time. The court provides the following summary tentative ruling: <u>Applications for Right to Attach Order and Temporary Protective Order</u> Plaintiffs Ydens Holdings LLC’s, Robert Ydens’, and Julie Ydens’ Application for Right to Attach Order, Temporary Protective Order, and Order for Issuance of Writ of Attachment as to Defendant EMI Solutions, LLC is DENIED. Plaintiffs Ydens Holdings LLC’s, Robert Ydens’, and Julie Ydens’ Application for Right to Attach Order, Temporary Protective Order, and Order for

		Issuance of Writ of Attachment as to Defendant Mobix Labs, Inc. is GRANTED. The court finds that California law governs these applications and that even if the motion to compel arbitration is granted, the court may still grant provisional remedies. (See <i>World Wide Imports, Inc. v. Bartel</i> (1983) 145 Cal.App.3d 1006, 1012 [“It is well-established that while the courts generally enforce the substantive rights created by the laws of other jurisdictions, the procedural matters are governed by the law of the forum.”]; Code Civ. Proc., § 1281.8, subd. (b).) In addition, there is no dispute that the parties entered into the Merger Agreement, which provides for a set amount of cash consideration, and that \$522,500.01 in cash consideration remains unpaid. The claim is one upon which an attachment may be issued in a readily ascertainable amount. Plaintiffs have established the probability of prevailing on their claim in the amount of \$522,500.01 against Defendant Mobix, but not Defendant EMI because Defendant EMI was not obligated to pay the cash consideration under the Merger Agreement. Plaintiffs shall give notice of this ruling.
4	Flannigan vs. Dolder 30-2024-01450681	<u>Motion for Leave to Amend</u> Plaintiff Terence Flannigan’s Motion to Amend the Complaint is DENIED without prejudice. <u>Pending Motion</u> Plaintiff Terence Flannigan moves for leave to amend the Complaint. <u>Standard for Leave to Amend (Upon Motion of a Party)</u> The Civil Procedure Code provides that: The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a